
DIVORCE PETITION

Petition for Dissolution of Marriage under the Marriage Act, 2014

Ref: DP/2026/045

THIS AGREEMENT is made on this _____ day of _____, 20____

BETWEEN:

1. ROBERT OCHIENG ODHIAMBO

ID No. 78901234, of P.O. Box 6666-00100, Nairobi (hereinafter "the Petitioner")

2. DIANA ACHIENG ODHIAMBO

ID No. 43210987, of P.O. Box 7777-00200, Nairobi (hereinafter "the Respondent")

NOW THEREFORE, the parties agree as follows:

1. INTRODUCTION

The Petitioner hereby petitions this Honourable Court for the dissolution of his marriage to the Respondent on the ground that the marriage has irretrievably broken down.

2. PARTICULARS OF MARRIAGE

The Petitioner and the Respondent were lawfully married on 15th June 2018 at the Registrar of Marriages, Nairobi, under the Marriage Act, 2014.

3. RESIDENCE

Both parties are domiciled in Kenya and ordinarily resident in Nairobi County.

4. CHILDREN OF THE MARRIAGE

There are two (2) children of the marriage: (a) Brian Omondi Odhiambo, born 12th March 2019; (b) Amanda Akinyi Odhiambo, born 5th September 2021.

5. GROUNDS FOR DIVORCE

The marriage has irretrievably broken down by reason of: (a) Adultery by the Respondent; (b) Cruelty and emotional abuse; (c) Desertion for a continuous period of at least two (2) years.

6. CUSTODY

The Petitioner prays for joint custody of the children of the marriage, with the primary care and control to be granted to the Petitioner.

7. MAINTENANCE

The Petitioner prays for an order that the Respondent pays monthly maintenance for the children in the sum of KES 50,000 per month.

8. MATRIMONIAL PROPERTY

The Petitioner prays for: (a) A declaration of the matrimonial property; (b) An order for equitable distribution of the matrimonial property; (c) An order that the matrimonial home be transferred to the Petitioner.

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9. COSTS

The Petitioner prays for costs of this petition.

10. PRAYER

WHEREFORE the Petitioner prays for: (a) Dissolution of the marriage; (b) Joint custody of the children; (c) Maintenance for the children; (d) Distribution of matrimonial property; (e) Costs of the petition.

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SCHEDULES

Schedule 1: Affidavit in Support

The Petitioner swears an affidavit verifying the facts set out in this petition and confirming that all information provided is true and correct to the best of the Petitioner's knowledge.

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This page forms part of the above-mentioned agreement.

IN WITNESS WHEREOF, the parties have executed this agreement on the date first above written.

SIGNED by the said _____

In the presence of: _____

Name: _____

ID/Passport: _____

Signature: _____

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